

**E Roz** <evanroz@gmail.com>

Re: FW: FW: NON COMPLIANCE - 585 Corydon Ave1 message

Evan Rosner <evanroz@gmail.com>

Mon, Feb 5, 2024 at 7:32 PM

To: "Maclean, David" <david.maclean@gov.mb.ca>, danielmchung677@hotmail.com

Hello David,

Daniel Chung is a resident at 6-585 Corydon ave. I have included him in this email.

He has been a resident here since 2021 and he was not provided with the storage unit despite a unit existing that was clearly marked #6 correlated with his suite. Storage was not included in his lease agreement but the Landlord has attempted to persuade me that the unit I have has been provided as a 'courtesy' to me which has been subsequently recognized as a service provided as they have since given me notice that they are withdrawing the service of storage unit and I will be receiving a rent decrease based on this, This should be extended to Mr, Chung as she was denied the service on the basis of avoiding following RTB protocol that would have resulted in necessitating rent decrease.

In addition, Mr. Chung has also been offered laundry service renovation which he has refused. On May 1 laundry services will be withdrawn and this will necessitate a reduction in his rent as well.

Please note that my charge is that Thorwin Properties has practiced deception and fraud in denying Mr. Chung access to the storage locker in order to deceitfully avoid following RTB procedure which should result in rent decrease.

The landlord has engaged in lies and exploitation of both tenant and RTB and this must be addressed as soon as possible.

You may choose to include me in email responses as Mr. Chung speaks English as an additional language and I am offering to facilitate communication.

You can reach Daniel Hung at +1 (204) 952-3037.

All the best,
Evan Rosner

On Mon, Feb 5, 2024 at 12:34 PM Maclean, David
<David.Maclean@gov.mb.ca> wrote:

Good afternoon Evan;

Thank you for your response, I do appreciate it. It is responses like these that enable the Branch to make an informed, just decision regarding the services that are being removed and the amount of the rent that should be reduced to balance out these services.

Before I get to the more pressing issue I wanted to let you know how the Branch determines the cost of storage and laundry. For storage; research is done to find something similar to the dimensions you have, and close to your home. For laundry we generally think 3 loads of laundry per week is average/fair and then calculate the dollar amount of what it would cost you to go to a laundromat.

Current issue.

Unfortunately I couldn't access the video you showed me, I am assuming its because of our security firewall protocols. I believe our system does accept.mov files but I couldn't open the ones you sent.

I did have a reply from the property manager who advised me that they have booked a cleaner to attend the building this week to ensure the area is clean and accessible. The Branch though cannot stop the landlord from doing the renovations; only advising them that they must ensure you have access to the services until May 1, 2024. If your items are damaged because of the landlord's negligence (either due to the dust or security) then you have the right to file a claim through our Branch for compensation. A hearing would be scheduled at which point a hearing officer would make a decision regarding your claim.

The Branch will be investigating the withdrawal of services for the other units but on an individual unit basis.

Please let me know if you are unable to access the laundry/storage due to the drilling so I can follow up with the property manager.

Thank you

David Maclean

Residential Tenancies Officer

Residential Tenancies Branch

200-155 Carlton St

Winnipeg, MB R3C 3H8

Phone: 204-945-2484

Fax: 204-945-6273

From: Evan Rosner <evanroz@gmail.com>

Sent: Friday, February 2, 2024 12:15 PM

To: Maclean, David <David.Maclean@gov.mb.ca>

Subject: Re: FW: NON COMPLIANCE - [585 Corydon Ave](#)

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Good morning,

There is currently drilling which is preventing me access and also welding that produces a hazardous environment. Although the construction workers are using gear and appear to be following healthy work and safety protocol what about the effects on my health? The noise is above 120 db and there are toxic fumes being produced although the windows are opened a crack. How can I do my laundry or use my storage unit when this is underway? Notice in the video the inaccessibility.

The measurements of the storage unit are 90 cm x 60 cm x 60 cm. The door is unlocked from 8:30 am until 4:30 pm each day of construction.

Please note that on form 8 the landlord has stated there will be no rent reduction despite stating otherwise in emails to me. I assume you have access to a copy.

Mr. Maclean, this landlord has engaged in deceptive practices and the reasons are clear: Although the laundry and storage services have been provided to me since my tenancy began in 2012, new tenants have not had the services indicated in their lease agreements. The service of storage was denied to new tenants without following proper protocol because the landlord has had plans to do this two suite creation since 2018 upon purchase of the property. Despite having the storage units available and identified as correlated to individual suites (see photos in previous emails) the landlord has left these services empty and were not provided to tenants at no cost to themselves and with only the goal of making these renovations as cheap as possible for themselves. Good business practices would be to withdraw the services which are a **physical reality** by following RTB protocol which was not done. The tenants who have either permitted or been deceived into permitting on suite renovations in which their storage space was reduced further to make room for the laundry services. The fact of the matter is that storage space in each of the renovated units has been decreased and each of the tenants since 2018 have been denied the storage unit services despite being available, accessible, and clearly indicated as correlated to the tenant suites. Thorwin Properties has engaged in deception and unethical treatment of their tenants and all tenants affected should be reimbursed for these self-serving practices. Let me be clear, there have been a reduction in services provided to all tenants and yet rent increases have increased each year which have deceptively not reflected the reduction in storage space in each of the renovated tenants suites due to the laundry services being installed and denial of storage unit services despite availability and accessibility.

This company has exploited RTB protocol on technicality and this cannot be allowed.

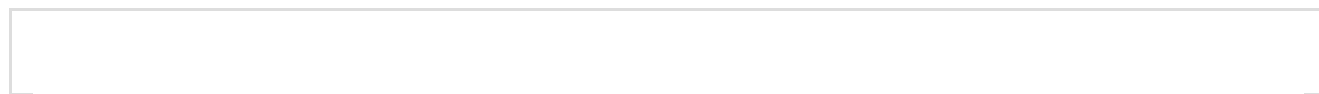
When you determine the amount of rent decrease that the withdrawal of service of my unit will result in monthly I have an additional request:

Each of the tenants since 2018 have had access denied to services that have been clearly identified on each of the now destructed storage units. I want the RTB to recognize that service withdrawal protocol was not followed by Thorwin, each of tenants should have had access to the associated storage units as I have, and it would be prudent and just for the RTB to order Thorwin Properties to retroactively payback the equivalent month by month value of storage fees that are included in the rent amount paid by the tenants from 2018 onwards.

I look forward to your response.

All the best,

Evan Rosner



On Thu, Feb 1, 2024 at 3:52 PM Maclean, David
<David.Maclean@gov.mb.ca> wrote:

Good afternoon Evan

Thank you for your email and patience.

I have reached out to the property manager regarding this situation. I have read through the emails and photos and understand what you are saying.

My part, as well as the rent increase file, is to determine a value on the services the landlord is withdrawing. Your rent will be reduced on the value of these services.

Do you know the dimensions of the storage area you have. Is the outside door always locked but isn't now because of the work being done?

I will also be assisting you in what is currently happening to your

current storage area and laundry. Once I hear back from the property manager I can then let you know what the next step is.

My contact information is below, should you prefer to call

Thank you

David Maclean

Residential Tenancies Officer

Residential Tenancies Branch

200-[155 Carlton St](#)

[Winnipeg, MB R3C 3H8](#)

Phone: 204-945-2484

Fax: 204-945-6273

From: Evan Rosner <evanroz@gmail.com>

Sent: Wednesday, January 31, 2024 3:38 PM

To: Maclean, David <David.Maclean@gov.mb.ca>

Subject: Fwd: NON COMPLIANCE - [585 Corydon Ave](#)

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Please see the attached correspondence. The landlord is in breach of regulations and this requires immediate attention. This a clear violation of mine and tenant rights. This requires immediate escalation.

Thank you,

Evan

----- Forwarded message -----

From: **Susan Fehr** <susan.fehr@thorwin.ca>

Date: Wed, Jan 31, 2024 at 3:15 PM

Subject: RE: NON COMPLIANCE - [585 Corydon Ave](#)

To: Evan Rosner <evanroz@gmail.com>, +WPG725 - CCA RTB (FIN) <rtb@gov.mb.ca>

Cc: Grant Steele <grant.steele@thorwin.ca>, Dasha Dorofeeva <Dasha.Dorofeeva@thorwin.ca>, property.admin <property.administration@thorwin.ca>

Evan

I have confirmed with the Construction Manager that both your locker and the laundry facilities at 585 Corydon are available for your use.

The workers have been instructed to make sure that there is a safe and clear path to these amenities.

Kind regards

Susan Fehr

General Manager – Property Division

E-mail: Susan.fehr@thorwin.ca

Office: [204-222-2422](tel:204-222-2422)

Direct: [204-918-0032](tel:204-918-0032)

Fax: [204-594-5414](tel:204-594-5414)

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From: Evan Rosner <evanroz@gmail.com>

Sent: Wednesday, January 31, 2024 2:43 PM

To: Susan Fehr <susan.fehr@thorwin.ca>; +WPG725 - CCA RTB (FIN) <rtb@gov.mb.ca>

Subject: re: NON COMPLIANCE - [585 Corydon Ave](#)

Attention,

You are informed that the actions occurring at [585 Corydon Ave](#) are in breach of the regulations of the Residential Tenancy Act.

I have received Form 8 dated January 23, 2024 indicating that common area laundry and storage lockers service withdrawal will occur on May 1. 2024.

This is already happening and is an issue of non-compliance with provincial regulations.

Cease and desist.

Evan Rosner

10-[585 Corydon Ave](#)